

Regulatory Status of Melatonin in RTD Beverages (EU)

1. Clear Regulatory Status

Melatonin is **not permitted** for use in ready-to-drink (RTD) beverages in the European Union.

Its addition to standard foods and beverages is currently prohibited because it is considered an **unauthorized novel food** in this product category. Furthermore, due to its pharmacological properties as a hormone, melatonin carries a high risk of being classified as a **medicinal product** by individual EU Member States, which strictly precludes its use in any food or beverage format.

2. Specific Legal References

- Novel Food Regulation (Regulation (EU) 2015/2283 & EU 2017/2470):** Melatonin has a history of consumption in the EU prior to May 15, 1997, *only* within the category of food supplements. Its application in standard foods, such as RTD beverages, is considered novel. Because melatonin is not listed in the Union list of authorized novel foods ([Commission Implementing Regulation \(EU\) 2017/2470](#)), it cannot be legally added to beverages. A novel food authorization would be required before it could be used in an RTD format.
- Medicinal Product Classification (Directive 2001/83/EC):** Melatonin is a neurohormone with recognized pharmacological effects. Under the Community code relating to medicinal products for human use ([Directive 2001/83/EC](#)), many Member States (e.g., Germany, Sweden, Ireland) classify melatonin as a "medicinal product by function." Any product classified as medicinal cannot be marketed as a food or beverage.
- Health Claims (Regulation (EU) No 432/2012):** There are two authorized health claims for melatonin under [Regulation \(EU\) No 432/2012](#):
 - Melatonin contributes to the alleviation of subjective feelings of jet lag* (minimum 0.5 mg per portion).
 - Melatonin contributes to the reduction of time taken to fall asleep* (1 mg per portion). **Important Note:** While these claims exist, they can only be applied to products that are legally permitted on the market (i.e., food supplements in certain Member States). The existence of these claims does *not* authorize the use of melatonin in RTD beverages.
- Addition of Substances to Food (Regulation (EC) No 1925/2006):** While melatonin is not explicitly listed in Annex III (substances whose use in foods is prohibited, restricted, or under Union scrutiny) of [Regulation \(EC\) No 1925/2006](#), its lack of novel food authorization for beverages supersedes this, rendering it impermissible.

3. Restrictions on Use

1. **Total Prohibition in Beverages:** Melatonin cannot be used in any subcategory of RTD beverages (e.g., relaxation drinks, functional waters, teas). There is no maximum permitted level for beverages because the ingredient is entirely unauthorized for this format.
2. **Food Supplements Exception:** Melatonin is only permitted in the EU under the strict classification of a food supplement (Directive 2002/46/EC), and even then, it is regulated at the national level rather than harmonized across the EU. Maximum permitted levels in supplements vary drastically by Member State (e.g., Italy allows up to 1 mg/day, Spain up to 1.9 mg/day, while Germany strictly classifies it as a medicine and bans it in supplements). **This exception does not apply to RTD beverages.** Any beverage containing melatonin would be deemed non-compliant and subject to recall.